

relies, such that the department of the first instance could reasonably be expected to recognise this and thus rectify its decision. That there are other objections which have not been removed but which were not the subject of the contested decision cannot preclude the application of Art. 109(1) EPC 1973 (T 139/87; T 1060/13; see also T 47/90, OJ 1991, 486; T 219/93; T 919/95). Thus, even if the amendments raise new objections not yet discussed, interlocutory revision must be allowed since an applicant should have the right to two instances (T 1060/13, T 691/18, T 982/18).

According to T 1640/06 objections or remarks made in an obiter dictum of a decision under appeal cannot be taken into account. In T 726/10 the board was of the opinion that the question whether or not the claims filed with the statement setting out the grounds of appeal took into account the remarks made in the obiter dictum was irrelevant for deciding whether interlocutory revision should be granted or not.

2.9.4 Competence of the department of first instance

In T 473/91 (OJ 1993, 630) the board made it clear that the admissibility question under Art. 109 EPC 1973 fell under the jurisdiction of the department of first instance only when this question could be decided immediately on the basis of the appeal submissions themselves. Consequently, the appellate instance had exclusive jurisdiction over a request for restitutio in integrum into a time limit relating to the appeal itself.

2.9.5 "Cassatory" or "reformatory" interlocutory revision

In T 919/95 the appellant was of the opinion that an interlocutory revision had to result in the appeal being allowed. A "cassatory" revision that merely set aside the contested decision and resumed the suspended proceedings was not compatible with the EPC. The interlocutory revision had to be a 'reformatory' revision, i.e. one that conferred on the appellant something that the contested decision deprived him of. The board stated that the requirements of Art. 109 EPC 1973 were met if the reason for the contested decision were removed as a result of an admissible appeal; once the contested decision had been set aside the requested decision could be taken, or the proceedings could be resumed, since further examination was required of new grounds or facts. The latter did not rule out a subsequent refusal. The purpose of interlocutory revision was to speed up the procedure. If an examining division rectified a decision under Art. 109 EPC 1973 merely in order to grant a patent according to an auxiliary request, even though the applicant insisted on his main request, the procedure was not thereby accelerated but slowed down and this would constitute a substantial procedural violation (see also T 142/96).

In J 5/08 the Legal Board stated that according to established EPO practice, interlocutory revision under Art. 109 EPC 1973 could either be such as to annul the decision (a "rein kassatorische Abhilfe", or purely "cassatory" act) or it can be a "reformatory" revision. In both cases, and whether or not the cancellation of the appealed decision is expressly ordered, the appealed decision is set aside by the department of first instance, in the first case by a "cassatory" procedural act, e.g. by a communication providing for the further examination of the application or, in the second case, by a revision decision immediately revising the appealed decision.

3. Substantive examination of the appeal

3.1. Binding effect of requests – no reformatio in peius

The question of law referred to the Enlarged Board of Appeal in G 9/92 and G 4/93 (both OJ 1994, 875) asked whether and to what extent a board of appeal could depart from the request formulated in the notice of appeal when deciding opposition appeal proceedings, to the disadvantage of the appellant.

The Enlarged Board took several factors into account. The aim of the appeal was to eliminate an 'adverse effect'. As the filing of an appeal was subject to a time limit, it would not be consistent to allow non-appealing parties the unrestricted right to alter the extent of the proceedings by submitting their own requests without limitation of time. A non-appealing party as a respondent had the opportunity to make what it considered to be appropriate and necessary submissions in the appeal proceedings to defend the result obtained before the department of first instance.

The Enlarged Board thus concluded that:

1. If the **patentee** was **sole appellant** against an interlocutory decision maintaining his patent in amended form, neither the board of appeal nor the non-appealing opponent (as party to the proceedings as of right under Art. 107, second sentence, EPC 1973) could challenge maintenance of the patent as thus amended.
2. If the **opponent** was **sole appellant** against an interlocutory decision by an opposition division maintaining the patent in amended form, the patentee was primarily restricted in the appeal proceedings to defending the patent as thus maintained. Amendments proposed by the patentee (as party to the proceedings as of right under Art. 107 EPC 1973, second sentence) could be rejected by the board as inadmissible if they were neither appropriate nor necessary.

As legal uncertainty had been created by the fact that the case law of the boards of appeal had not been uniform as regards the principle of prohibition of reformatio in peius when applying or interpreting decision G 9/92 (OJ 1994, 875), a further question was referred to the Enlarged Board, which was answered in G 1/99 (OJ 2001, 381). See in this chapter V.A.3.1.7.

3.1.1 Reformatio in peius does not apply separately to each point

According to the established case law of the boards of appeal, the doctrine of prohibition of reformatio in peius cannot be construed to apply separately to each point or issue decided, or the reasoning leading to the impugned decision (see T 149/02). If an appeal is lodged against an adverse decision of the department of first instance about the main request, then the whole request is before the board of appeal and within its jurisdiction, and the board is empowered to reopen and to decide upon matters which have been an issue before the opposition division (see T 327/92, T 401/95, T 583/95, T 576/12). The prohibition of reformatio in peius relates solely to the legal effect of an impugned decision;

it does not apply to individual issues or objections (T.1924/18, with reference to T.1437/15).

3.1.2 Reformatio in peius and devolutive effect of appeal

In T.149/02 the board stated that the two general principles of procedure – prohibition of reformatio in peius and the devolutive effect of the appeal, which conferred on the board the power to consider its subject-matter – were complementary and had to be implemented in such a way that they did not exclude each other.

3.1.3 Cases where reformatio in peius does not apply

In T.1178/04 (OJ 2008, 80) the board held that where the issue was a person's right to be a party, the principle of no reformatio in peius was of no application, bearing in mind the fact that the principle of no reformatio in peius was taken mainly from the well-established principle in German law ("Verschlechterungsverbot"). This principle has no application in those cases where (a) there exist procedural preconditions for making relevant requests to the court ("Verfahrensvoraussetzungen") and (b) these preconditions are of a kind that cannot be waived or dispensed with ("unverzichtbare Verfahrensvoraussetzungen"), such that the court must itself be satisfied that they have been fulfilled. According to the board, in the context of patent proceedings such as these, preconditions of this kind included the admissibility of the opposition itself and the capacity of a person to be a party to the proceedings in the first place.

Referring to T.1178/04, the board in T.384/08 found that the admissibility of the opposition is an indispensable procedural requirement for the substantive examination of the opposition submissions at every stage of the proceedings. The board therefore had to examine the question of the transfer of status of the opponent ex officio before dealing with the substance of the case.

3.1.4 Patentee as sole appellant

In T.598/99 the board observed that the principle of reformatio in peius applied so as to prevent a sole appellant being put in a worse situation than he was in before he appealed. Where the patentee was the sole appellant, the principle could not serve to protect the opponent (respondent) from being put in a worse situation than he was in before the appeal (G.9/92, OJ 1994, 875 and G.4/93, OJ 1994, 875). Indeed, whenever a sole patentee was successful in his appeal against the revocation of his patent, the opponent would be in a worse position than before. The fact that the opponent was not entitled to appeal against the decision to revoke the patent was immaterial in that respect.

An early decision applying the principles expounded in G.9/92 and G.4/93 (OJ 1994, 875) was T.856/92, in which the board concluded that in a case where the patentee and sole appellant appealed only in respect of some of the claims held allowable in the opposition division's interlocutory decision, neither the board nor the opponent might challenge those claims not questioned by the appellant.

When the patent proprietor is the sole appellant, the patent as maintained by the opposition division in its interlocutory decision cannot be objected to by the board, either at the request of the respondent (opponent) or ex officio (see G 1/99, OJ 2001, 381, T 1689/12, T 822/16).

In T 1626/11, the first ten claims of the main request were identical in wording to those of the second auxiliary request, which the opposition division had already found to comply with the EPC. Faced with the question whether it could examine those claims without contravening the principle of no reformatio in peius, the board cited T 856/92 and T 149/02, in which the boards had concluded that, where the proprietor was the sole appellant, they could no longer review any part of a set of claims included in a new set of claims also containing additional (parallel) claims if the opposition division had already held that the first set to be EPC-compliant and the additional claims did not alter how it was to be interpreted. This conclusion, based on G 9/92, was similarly reached in T 168/04, T 1713/08, T 722/10 and T 428/12.

The board in T 659/07 found that where the patentee is the sole appellant, the patent as maintained by the opposition division in its interlocutory decisions, cannot be objected to by the board, either at the request of the respondent (opponent) or ex officio, even if the patent as maintained would otherwise have to be revoked on the ground that a feature present in both claim 1 as granted and as maintained introduces added subject-matter contrary to Art. 123(2) EPC 1973.

3.1.5 Opponent as sole appellant

In T 752/93 of 16 July 1996, T 637/96, and T 1002/95 the opposition division had maintained the patent in amended form and only the opponent had appealed. The non-appealing patentee proposed amendments during the appeal proceedings. In T 752/93 and T 1002/95 the board found that amendments proposed by a non-appealing patentee could, according to G 9/92 (OJ 1994, 875), be rejected as inadmissible by the board of appeal if they were neither appropriate nor necessary, i.e. had not been occasioned by the appeal. According to T 752/93 the patentee should therefore have the opportunity to correct erroneous amendments if these were detected later in the proceedings. Similarly, in T 637/96, the respondent (patentee) was able to request restoration of the claim as granted, as the amendment made to it in opposition proceedings did not change its subject-matter (i.e. the claim as granted and amended meant the same thing) and was therefore unnecessary. In T 752/93 and T 637/96 the amendments were found not to worsen the sole appellant's position and the board thus considered them appropriate and necessary. In T 1002/95 the board pointed out that under R. 57a EPC 1973, which came into force after decisions G 9/92 and G 4/93, a patentee was entitled to make "appropriate and necessary" amendments occasioned by grounds for opposition specified in Art. 100 EPC 1973, even if the respective ground was not invoked by the opponent.

In T 23/04 the board made it clear that the requirements of reformatio in peius do not imply any right of the appealing party (opponent) to dictate the form any proposed amendments may take, and certainly to prescribe a form of amendment which would be maximally disadvantageous to the patent proprietor.

In T.1380/04 the board, referring to G.1/99 (OJ 2001, 381), held that the deletion of a term by the patentee/respondent could not be allowed, as this would have worsened the legal position of the appellant, contrary to the prohibition of reformatio in peius. It was immaterial that the term had only been introduced at the suggestion of the opposition division, as this did not alter the fact that approval of this amendment was the responsibility of the proprietor.

However, if the opponent and sole appellant deliberately refrains from invoking the prohibition of reformatio in peius against a claim request submitted by the respondent (patentee) which extended the scope beyond that of the claims as maintained by the department of first instance, the board need not apply the principle of the prohibition of reformatio in peius of its own motion. Following the principle of party disposition, any right protecting an appellant against an outcome that puts it in a worse position than if it had not appealed, may be waived (T.1544/07).

The board observed in T.111/10 that the exceptional possibilities for amendment foreseen by G.1/99 in application of the principle of the prohibition of reformatio in peius only applied if the patent would otherwise have to be revoked, i.e. the patent proprietor (respondent) did not have any other possibility of amendment which would allow rescue of even part of the opposed patent. In the case at issue, however, such a possibility existed. Although this would have resulted in a restriction of scope, it could not be considered unduly inequitable for a patent proprietor who, not having appealed, could not from the outset expect to get more than what was already maintained by the opposition division.

3.1.6 Revocation of patent

The principles of G.9/92 (OJ 1994, 875) were applied in T.169/93 to the situation where the patent had been revoked, not amended. The patentee appealed against the decision to revoke (for lack of inventive step). The opposition division had found the patent sufficiently disclosed and novel. The appellant submitted that these issues could not be reopened, as none of the opponents had appealed this finding, relying on decisions G.9/91 (OJ 1993, 408), G.10/91 (OJ 1993, 420) and G.9/92. The board disagreed, pointing out that the respondents were unable to file an appeal, not being adversely affected under Art.107 EPC 1973, their request for revocation having been granted. Moreover, as the patent had been revoked, it was not possible for the appellant to have an even worse outcome. It was thus open to the respondents to re-argue matters which had already been at issue before the opposition division. See also T.1341/04, where the board further noted that the situation arising from a decision to revoke a patent was legally different from the one in which the patent had been maintained by the opposition division in amended form, where the decision could be appealed by both patentee and opponent. It was this situation which led to the conclusion in G.9/92 and G.4/93 that the patent proprietor is primarily restricted during the appeal proceedings to defending the patent in the form in which it was maintained by the opposition division, in a case where the opponent is the sole appellant.